Atomic Energy Act of 1946, as amended, or under the authority of the Department of Defense and applicable to any individual receiving an award under the regulations in this part, no payments shall be made to any individual receiving such an award, unless such individual has subscribed to and filed with the Public Health Service a statement that he does not advocate, and is not a member of and does not support any organization that advocates or teaches, the overthrow of the United States Government by force or violence or by any illegal or unconstitutional methods, and, except when an alien owing allegiance to other than the United States, that he will bear true faith and allegiance to the United States of America and will support and defend the Constitution and laws of the United States against all its enemies, foreign and domestic.

(Sec. 215, 58 Stat. 690, as amended; 42 U. S. C. 216. Interprets or applies secs. 301, 303, 402, 403, 58 Stat. 691, as amended, 707, as amended, sec. 7, 60 Stat. 423, sec. 3, 62 Stat. 469, 598, sec. 2, 64 Stat. 444; 42 U. S. C. 241, 242a, 282, 283, 287a, 288a, 289c)

3. The foregoing amendments shall become effective on September 15, 1955.

Dated: September 8, 1955.

[SEAL] W. PALMER DEARING,
Acting Surgeon General.

Approved: September 15, 1955.

M. B. FOLSOM,
Secretary.

[F. R. Doc. 55-7637; Filed, Sept. 20, 1955; 8:49 a. m.]

TITLE 43—PUBLIC LANDS: INTERIOR

Chapter I—Bureau of Land Management, Department of the Interior

Appendix C—Public Land Orders

[Public Land Order 1224]

[Misc. 57345, 60446]

ALASKA

REVOKING EXECUTIVE ORDER OF DECEMBER 9, 1903 AND EXECUTIVE ORDER 1229 OF JULY 15, 1910; PARTIALLY REVOKING EXECUTIVE ORDER OF JANUARY 4, 1901

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

1. The Executive order of December 9, 1903, and Executive Order No. 1229 of July 15, 1910, withdrawing the following-described public lands in Alaska for naval purposes, are hereby revoked:

EXECUTIVE ORDER OF DECEMBER 9, 1903

KISKA AND LITTLE KISKA ISLANDS

All tracts and parcels of land in Alaska situate on the group of islands including Kiska Island, Little Kiska Island, and all the adjacent islets and rocks, lying between the parallels of 51° 30′ and 52° 15′ north latitude, and the meridians 176° 45′ and 177° 50′ east longitude, as shown on the U. S. Coast and Geodetic Survey chart No. 9100, edition of May 1902.

The area described contains 73,701.76 acres of land; 1,468,365.44 acres of water.

EXECUTIVE ORDER NO. 1229

CORDOVA BAY

Beginning at the most western angle of the survey of the Nelson townsite, and running thence South 44° east with the line of the wharf and dock area 920 feet to a point; thence South 46° west in Orca Bay 4140 feet, to point near the west shore of the bay; thence North 44° west 2,640 feet to a point of land; thence North 46° east 5,280 feet to a point; thence South 44° east 1,720 feet to the boundary of the said townsite; thence with said boundary southwesterly 1,140 feet to the point of beginning.

The area described contains approximately 296 acres.

2. The Executive order of January 4, 1901, withdrawing certain public land in Alaska for light-house purposes is hereby revoked so far as it refers to Unalga Island and the Sea Gull Rocks adjacent.

The areas described contain 761.92 acres.

Kiska, Little Kiska, and Unalga Islands, are within the Aleutian Island National Wildlife Refuge. The lands at Cordova Bay are within the Chugach National Forest, having been reserved for such use by the Proclamation of July 23, 1907, as amended, and shall become subject to the public-land laws relating to national forest lands at 10:00 a. m. on the 35th day from the date of this order.

DOUGLAS MCKAY,
Secretary of the Interior.

SEPTEMBER 14, 1955.

[F. R. Doc. 55-7616; Filed, Sept. 20, 1955; 8:45 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Rules Amdts. 2-5, 3-56]

[Docket No. 11140; FCC 55-931]

PART 2—FREQUENCY ALLOCATIONS AND RADIO TREATY MATTERS; GENERAL RULES AND REGULATIONS

PART 3—RADIO BROADCAST SERVICES

FREQUENCY ALLOCATIONS IN ALASKA

In the matter of amendment of Parts 2 and 3 of the Commission's rules and regulations to revise frequency allocations in the Territory of Alaska in the band 72–100 Mc, Docket No. 11140.

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 7th day of September 1955;

The Commission having under consideration its proposal in the above-entitled matter; and

It appearing that in accordance with the requirements of Section 4 (a) of the Administrative Procedure Act, Notice of Proposed Rule Making in this matter, which made provision for the submission of written comments by interested parties, was duly published in the FEDERAL REGISTER on August 24, 1954 (19 F. R. 5378) and that the period for the filing of comments has now expired; and

It further appearing that the only comment received by the Commission in this proceeding favored the adoption of the Commission's proposal; and

It further appearing that the public interest, convenience and necessity will be served by the amendments herein ordered, the authority for which is contained in sections 303 (c), (f), (g) and (r) of the Communications Act of 1934, as amended;

It is ordered, That, effective October 12, 1955, Parts 2 and 3 of the Commission's rules are amended as set forth below.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interpret or apply sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

Released: September 12, 1955.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] MARY JANE MORRIS,
Secretary.

1. Amend Part 2, Frequency Allocations and Radio Treaty Matters: General Rules and Regulations, § 2.104, *Frequency allocations,* paragraph (a) (5), in the following respects:

a. Add footnote indicator (US32) in Column 5 under 72–76 Mc and insert the following text of new footnote US32:

US32 In the Territory of Alaska, Government stations in the fixed service may be authorized to use frequencies in the band 72–76 Mc, on the condition that harmful interference will not be caused to the reception of TV channel 4.

b. Add footnote indicator (US33) in Column 5 under 76–88 Mc and 88–108 Mc and insert the following text of new footnote US33:

US33 In the Territory of Alaska, the frequency bands 76–88 Mc and 88–100 Mc are allocated to Government radio services and the non-Government fixed service.

2. Amend Part 3, Radio Broadcast Services in the following respects:

a. Amend § 3.203 (b) of Subpart B, Rules Governing FM Broadcast stations, to include reference to a paragraph (d) by revising the text preceding the table to read as follows:

(b) The following frequencies, except as provided in paragraphs (c) and (d) of this section, are designated as Class A channels and are assigned for use by Class A stations:

b. Amend §3.203 of Subpart B, Rules Governing FM Broadcast stations, by adding a new paragraph (d) to read as follows:

(d) In the Territory of Alaska the frequency band 88–100 Mc is allocated to Government radio services and the non-Government fixed service only. The frequencies 88.1 Mc through 99.9 Mc (Channels 201 through 260 inclusive) will not be assigned in the Territory of Alaska for use by FM Broadcast stations.

c. Amend § 3.204 (b) of Subpart B, Rules Governing FM Broadcast Stations, to include reference to a paragraph (d) by revising the text preceding the table to read as follows:

(b) The following frequencies, except as provided in paragraphs (c) and (d) of this section, are designated as Class B

channels and are assigned for use by Class B stations:

d. Amend § 3.204 of Subpart B, Rules Governing FM Broadcast Stations, by adding a new paragraph (d) to read as follows:

(d) In the Territory of Alaska the frequency band 88–100 Mc is allocated exclusively to Government radio services and the non-Government fixed service. The frequencies 88.1 Mc through 99.9 Mc (Channels 201 through 260 inclusive) will not be assigned in the Territory of Alaska for use by FM Broadcast stations.

e. Amend § 3.603 (b) of Subpart E, Rules Governing Television Broadcast Stations, by adding Alaska. As amended, § 3.603 (b) reads as follows:

(b) In the Territories of Alaska and Hawaii the frequency bands 76–82 Mc and 82–88 Mc are allocated for non-Broadcast use. These frequency bands (Channels 5 and 6) will not be assigned in the Territories of Alaska or Hawaii for use by TV Broadcast stations.

[F. R. Doc. 55–7644; Filed, Sept. 20, 1955; 8:51 a. m.]

PROPOSED RULE MAKING

DEPARTMENT OF LABOR

Division of Public Contracts

[41 CFR Part 202]

PREVAILING MINIMUM WAGES IN BATTERY INDUSTRY

NOTICE OF PUBLIC HEARING

This matter is before the Department pursuant to the Act of June 20, 1936 (49 Stat. 2036; 41 U. S. C. sec. 35 et seq.), known as the Walsh-Healey Public Contracts Act.

The Battery Industry is defined for purposes of this hearing as that industry which manufactures or furnishes all types of electric batteries including lead-acid storage batteries or plates therefor; dry primary batteries; all other batteries or parts therefor except glass containers and porcelain covers for wet primary batteries.

Now, therefore, notice is hereby given that a public hearing will be held on the 18th day of October 1955, beginning at 10:00 a. m. in Room 2203, United States Department of Labor Building, Fourteenth and Constitution Avenue NW., Washington, D. C., before the Secretary of Labor or a duly assigned Hearing Examiner, at which hearing all interested parties may appear and submit data, views and arguments (1) as to the propriety of the proposed definition of the industry; (2) as to what are the prevailing wages in the industry; (3) as to whether a single determination is appropriate for all the products of the industry; (4) as to whether a single determination for all the area in which the industry operates or separate determinations for smaller geographic areas (including the appropriate limits of such areas) should be determined for this industry; (5) as to whether there should be included in any determination for this industry provision for the employment of learners, beginners or apprentices at subminimum rates and on what terms or limitations, if any, such employment should be permitted. Employment and wage data have been prepared in the Department of Labor for consideration at the hearing and will be made available to interested parties upon request.

Persons intending to appear are requested to notify the Administrator, Wage and Hour and Public Contracts Divisions, of their intention in advance of the hearing.

Written statements of position or argument may be filed with the Administrator at any time prior to the date of the hearing by persons who cannot appear personally. An original and three copies of any such statement shall be filed and shall include the reason or reasons for non-appearance. Such statements as contain factual matter shall be sworn to and will be offered in evidence at the hearing. If objection is made to any such offer, the statement will be received in evidence subject to the objection which will be considered to affect the weight rather than the admissibility of the statement.

The following information is particularly invited with respect to the subject matter of the testimony or statements of each witness: (1) The identity of any product not now included in the definition of the industry which should be included and of any products now included which should not be included; (2) the number of workers covered in the presentation; (3) the number and location of establishments in the industry; (4) the minimum rates paid and the number of workers receiving such rates and the occupations in which they are employed; (5) the minimum wages paid to apprentices, learners or beginners; the scale of wages paid during the apprenticeship, learning or probationary period; the length of such periods; the number of workers receiving such wages and the occupations in which they are employed; and (6) the extent to which there is competition in this industry between plants in different geographical areas.

To the extent possible, data should be submitted in such manner as to permit evaluation thereof on a plant by plant basis.

This hearing shall be conducted pursuant to the rules of practice set forth in Part 203, Subpart C (41 CFR Part 203).

Signed at Washington, D. C., this 16th day of September 1955.

ARTHUR LARSON,
Acting Secretary of Labor.

[F. R. Doc. 55–7643; Filed, Sept. 20, 1955; 8:50 a. m.]

DEPARTMENT OF AGRICULTURE

Agricultural Marketing Service

[7 CFR Part 29]

TOBACCO INSPECTION

ANNOUNCEMENT OF REFERENDA IN CONNECTION WITH PROPOSED DESIGNATIONS UNDER TOBACCO INSPECTION ACT OF TOBACCO AUCTION MARKETS OF HENDERSON, KY., AND GATE CITY, VA.

Pursuant to the provisions of The Tobacco Inspection Act (7 U. S. C. 511 et seq.) and in accordance with the applicable regulations (7 CFR 29.74) issued thereunder by the Secretary, notice is given that referenda of tobacco growers will be conducted from October 6 through October 8, 1955, to determine whether growers favor the designations of the Henderson, Kentucky, and Gate City, Virginia, tobacco auction markets for free and mandatory inspection of tobacco sold on these markets.

Growers who sold tobacco on the aforesaid markets during the 1954–55 marketing season shall be eligible to vote in the referendum relevant to the market on which their sales were accomplished. Ballots for use in said referenda will be mailed to all eligible voters insofar as their names and addresses are known. Eligible voters who do not receive ballots by mail may obtain them from the county agent or the office of the county ASC committee at the above points.

All completed ballots shall be mailed to the Tobacco Division, Agricultural Marketing Service, United States Department of Agriculture, 620 South Broadway, Lexington, Kentucky, and, in order to be counted in said referenda, most be postmarked not later than midnight, October 8, 1955.

Done at Washington, D. C., this 15th day of September 1955.

[SEAL] ROY W. LENNARTSON,
Deputy Administrator.

[F. R. Doc. 55–7632; Filed, Sept. 20, 1955; 8:48 a. m.]

[7 CFR Part 51]

GRAPEFRUIT (TEXAS AND STATES OTHER THAN FLORIDA, CALIFORNIA AND ARIZONA) [1]

U. S. STANDARDS

Notice is hereby given that the United States Department of Agriculture is considering the revision of United States Standards for Grapefruit (Texas and States other than Florida, California and Arizona) (7 CFR Part 51; 19 F. R. 4435) pursuant to the authority contained in the Agricultural Marketing Act of 1946 (60 Stat. 1087 et seq., 7 U. S. C. 1621 et seq.).

All persons who desire to submit written data, views or arguments for consideration in connection with the proposed standards should file the same

[1] Packing of the product in conformity with the requirements of these standards shall not excuse failure to comply with the provisions of the Federal Food, Drug, and Cosmetic Act.